

Hridesh Kumar v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 16 October 2014 · Writ-C No. 55451 of 2014 · **Writ disposed; EE to decide 4.5(d) representation; line stayed meantime.**

HEADNOTE

Landowners objected to poles and a tubewell supply line over their bhumidhari plot, invoking clause 4.5(d) of the U.P. Electricity Supply Code, 2005 (no line over third-party land without no-objection). Without entering the merits, the Division Bench directed the Executive Engineer to decide the pending representation in accordance with law within one month, after hearing, and restrained the respondents from taking the line over the plot until then.

FACTUAL SUMMARY

The petitioners, bhumidhars of Khasra Plot No. 196 at Village Asafabad Chaman, District Bijnor, have a house and cattle shed on the land. In June 2014, pursuant to the Executive Engineer's letter of 9 June 2014, Smt. Sarita Chauhan began erecting poles there for a tubewell connection. Their representations of 22 June and 2 July 2014 were not decided. They relied on clause 4.5(d) of the U.P. Electricity Supply Code, 2005, which bars a supply line over third-party land without no-objection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.5(d)

landowner objection to supply line

HOLDING

Without deciding whether clause 4.5(d) of the U.P. Electricity Supply Code, 2005 barred the licensee from laying a tubewell supply line over the landowners' plot without a third-party no-objection, the Court disposed of the writ by directing the Executive Engineer to consider and decide the pending representation in accordance with law, after hearing, within one month, and restrained the respondents from taking the electricity line over the plot until that decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.5(D) BARRED LAYING THE TUBEWELL SUPPLY LINE OVER THE PETITIONERS' PLOT WITHOUT A THIRD-PARTY NO-OBJECTION

The Court expressly declined to enter the merits. ¶ 1